JOSEPH BILSON MAKONI
versus
THE STATE

HIGH COURT OF ZIMBABWE
MANZUNZU J
HARARE, 3 & 19 January 2026

Bail Application Pending Trial

P. Vushe- Bwititi, for the applicant
T. N Havazvidi, for the respondent

MANZUNZU J

INTRODUCTION

(1) This is an application for bail pending trial. The applicant is being charged with attempted robbery as defined in section 189 as read with section 126 of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*].

BRIEF ALLEGATIONS

(2) It is alleged that on 17 November 2024, at 23.30 hrs the applicant and his accomplices attempted to rob Takunda Mukono at his place of residence at number 16994 Zimre Park Extension, Harare.

(3) When the applicant and his accomplices tried to force their entry into the complainant's house, the occupants woke up and confronted the intruders who responded by firing two gunshots at the complaint's son who managed to escape.

(4) When the complainant resisted their entry by use of an iron bar to attack them, the applicant and co- accused abandoned the mission and ran away.

(5) The applicant was arrested on 12 January 2025 and a pistol which is not only linked to the commission of this offence but several others was recovered from the applicant. Forensic ballistic evidence is said to be available to prove that fact.

APPLICANT'S DEFENCE

(6) The applicant raises a bare denial to all the charges against him.

(7) The only charge he gives details of his defence is in respect to a charge of 12 January 2025 where he said he could not have committed the alleged offence while he was in custody. The respondent however explained that the 12th was a typographical error as it was intended to be on 1 January 2025.

(8) Nevertheless, the applicant alleges that he is wrongly charged and associated with persons unknown to him.

THE RESPONDENT'S RESPONSE.

(9) The respondent relied on mainly two grounds in opposing this application; that the applicant was likely to abscond and the propensity to commit similar offences when granted bail. I will deal with these grounds later in this judgment after examining the position of the law.

THE LAW

The law in relation to applications for bail pending trial is well settled.

(10) Section 70 of the Constitution on the rights of accused persons say; any person accused of an offence has the right, among other rights, to be presumed innocent until proved guilty. This means an applicant accused of committing an offence, must not be treated as if he/she has already been found guilty.

(11) Sect 50 (1) (d) of Constitution guarantees liberty unless there are compelling reasons justifying continued detention. The section provides that;

> "Any person who is arrested must be released unconditionally or on reasonable conditions, pending a charge or trial, unless there are compelling reasons justifying their continued detention."

(12) The prosecution shall bear the burden of showing, on a balance of probabilities, that there are compelling reasons justifying the accused's continued detention, unless the offence in question is one specified in the Third Schedule; then in that case the accused person shall bear the burden of showing, on a balance of probabilities, that it is in the interests of justice for him or her to be released on bail. See section 115C of the Criminal Procedure and

Evidence Act. It must be noted that the shifting of the burden of proof to the accused person does not absolve the prosecution from showing compelling reasons.

(13) Section 117 (2) of the Criminal Procedure and Evidence Act provides grounds that a court may refuse to grant bail. It states that

> "(2) The refusal to grant bail and the detention of an accused in custody shall be in the interests of justice where one or more of the following grounds are established—
>
> (a) where there is a likelihood that the accused, if he or she were released on bail, will—
>
> (i) endanger the safety of the public or any particular person or will commit an offence referred to in the First Schedule; or
>
> (ii) not stand his or her trial or appear to receive sentence; or
>
> (iii) attempt to influence or intimidate witnesses or to conceal or destroy evidence; or
>
> (iv) undermine or jeopardise the objectives or proper functioning of the criminal justice system, including the bail system;
>
> or
>
> (b) where in exceptional circumstances there is the likelihood that the release of the accused will
>
> disturb the public order or undermine public peace or security."

(14) Consideration of bail applications is a balancing act of the individual liberty versus the proper administration of justice, see S v Benator 1985 (2) ZLR 205 (H). In *S* v *Essack 1965 (2) SA 161 (D) @ 162 d* where MILLER J had the following to say

> "in dealing with an application of this nature it is necessary to strike a balance as far as that can be done between protecting the liberty of the individual and safeguarding and ensuring the proper administration of justice…"

(15) Seriousness of offence is not a good reason to deny applicant bail see *S* v *Hussey* 1991 (2) ZLR 187 (S).

SUBMISSIONS

Likelihood to abscond

(16) The State argued that the fear to abscond is derived from severe sentences which might be imposed upon conviction because of the serious nature of the offences. Further that there is a strong case against the applicant as his clothes later recovered from him having been captured on the CCTV footage. The pistol recovered from the applicant is linked to the other

various offences. Trials in some counts have already commenced with some trial dates set for January 2026.

(17) The applicant argued a mismatch in the dates of arrest, but that was explained as a typographical error.

(18) The applicant urged the court to rule out the possibility of absconding in that, apart from pleading his innocence to all the charges, the applicant said was a person of fixed abode, with a family to look after. It was argued that the presumption of innocence and the constitutional right to liberty must weigh heavily in his favour.

Propensity to commit similar offences

(19) The State's main fear is that if the applicant is released on bail, he is likely to commit further offences. Trite position that where the State seeks to rely on the ground that there are fears to commit further offences, it must point to some facts that suggest that there is such a danger and that this cannot be averted by the imposition of stringent bail conditions, see S v Fourie 1973 (1) SA 100.

(20) The State said the applicant is not the right candidate for bail as he is alleged to be a danger to the public.

(21) Ms Havazvidi for the State outlined a number of factors in support of the fears. She said there was no doubt the offence is a serious one. Apart from that the applicant was facing other multiple offences of robbery some of which trials have commenced. Furthermore, the applicant has previous convictions and CRB references were provided.

ANALYSIS

(22) As established by the Constitution bail is a right, the right though is not absolute if there are compelling reasons in the interest of justice that justify that the accused remains detained.

(23) Section 117 (2) of the Criminal Procedure and Evidence Act outlines the compelling reasons why an applicant may be denied bail.

(24) In the case of *S* v *Jongwe* 2002 (2) ZLR 2009 (S) the court outlined some of the factors to be taken into account in judging the risk that an accused person would abscond court if admitted to bail. These include inter alia;

(a) the nature of the charge and the severity of punishment which is to be imposed on the accused person upon conviction
(b) the apparent strength or weakness of the case against the accused
(c) the accused's ability to reach another country and the absence of extradition facilities from other countries
(d) the accused's behaviour
(e) The credibility of the accused's own assurance of his intention and motivation to remain and stand trial.

(25) This court has observed that robbery is a serious offence which demands stringent and cautious approach as it affects victims both physically and psychologically. The court also notes that it also affects the society. In *S* v *Munetsi* HH174-25 the court had this to say; "The issue of granting bail to persons accused of robbery, particularly in cases of robbery involving the use of firearms, is a contentious and polarizing matter in this country. Robbery, committed in aggravating circumstances, is a heinous and violent crime. A significant increase in such robberies has, unfortunately been reported across the country. It is a crime that poses a grave threat to societal safety, fuelling widespread public calls for tougher measures, such as harsher penalties and denial of bail for those accused of it. Many people express outrage and frustration when bail is granted to accused suspects arrested on allegations of robbery. The public fears that such persons may not only abscond but are likely to reoffend. This concern is heightened by high-profile instances where accused persons released on bail have gone on to commit further crimes, amplifying the demand for a more stringent and cautious approach to handling such offences."

(26) Law being a creature of humans cannot be applied in abstract. It is intended to protect and benefit its creators for the orderliness of Society.

(27) In *casu*, the applicant is charged with a serious offence which is attempted robbery. The accused is also linked to the other robbery charges to which he is to stand trial, while he has already been convicted in others. There is the use of a firearm.

(28) There is a reasonable likelihood that the accused will either abscond and there is a high propensity that the applicant will commit further crimes if granted bail, as he has been convicted on other charges and has other ones pending trial.

(29) The applicant, I agree with the State, is therefore not a proper candidate for bail following his previous convictions, pending criminal trials and the nature of the crime committed.

(30) Granting bail in these circumstances would undermine the interests of justice and pose a grave risk to public safety.

DISPOSITION

The application for bail pending trial be and is hereby dismissed.

MANZUNZU J……